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| 8 | 30-2023-01342909<br>Ruvalcaba vs. Modified<br>Plastics, Inc. | <p>The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$750,000 class action and PAGA settlement. The motion for preliminary approval of the class action and PAGA settlement is <b>GRANTED</b> as to the current version of the parties' settlement agreement, as amended. The court also approves the current version of the notice.</p> <p>The motion for final approval shall be heard on December 14, 2026 at 1:30 p.m. in Department CX103. Moving papers are due 16 days prior to the hearing.</p> <p>The proposed order and judgment should be revised consistent with the above. Additionally, the following revisions should also be made:</p> <ol style="list-style-type: none"> <li>1. Add "Assigned for all purposes to: Hon. David A. Hoffer, Dept. CX103" between the case number and the document title on the caption page.</li> <li>2. In the non-numbered, introductory paragraph on page 1, the amendment to the settlement is misidentified as ROA 109. Replace ROA 109 with the correct citation, i.e., ROA 116.</li> <li>3. In paragraph 5, the amendment to the settlement is misidentified as ROA 109. However, as no clean version of the notice has been filed, simply delete "attached to the Declaration of Heather Davis ROA 109 and" from this paragraph, as no reference to the ROA is needed.</li> </ol> <p>Plaintiff is ordered to give notice of this court's ruling, including to the LWDA, within 10 calendar days and to file a proof of service.</p> |
| 9 | 30-2025-01485295<br>Martinez vs.<br>Fluidmaster, Inc.        | <p>The tentative ruling is to continue Plaintiff Norma Martinez's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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|  |  | <p>Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved.</p> <p>The Class Period and PAGA Periods are defined as ending on October 18, 2025. (Settlement ¶¶ 1.11, 1.31.) However, the escalator clause in Paragraph 7.0 of the settlement agreement provides for the option to either increase the settlement amount or change the Class Period (and therefore the PAGA Period) such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice and have the class notice include the adjusted end date to avoid being sent to non-participants.</p> <p>The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage.</p> <p>The administrator invoice does not include the cost of Spanish translation of the notice.</p> <p>The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an</p> |
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|  |  | <p>explanation of why the figure is not at least 33 1/3% is required.</p> <p>The settlement agreement and class notice state that the Administrator will resolve any workweek disputes. (Settlement ¶ 6.12.2; <i>see also</i> Class Notice at p. 5 [§ IV(7)].) The documents should reflect instead that while the Administrator and the parties will attempt to resolve any such dispute, the court ultimately will decide any unresolved dispute.</p> <p>The following changes must be made to the class notice:</p> <ul style="list-style-type: none"> <li>• Putative class members and aggrieved employees may object to the amount allocated to PAGA penalties. Therefore, on Page 2 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” in column 1 of the table, must be amended to state: “Participating Class Members Can Object to the Class Settlement.” Further the statement “Participating Class Members have the right to object to any of these deductions except the PAGA penalties.” in Section IV(2) on Page 4 of the class notice should be amended to state: “Participating Class Members have the right to object to any of these deductions.”</li> <li>• The phrase “Court Approved Deductions from Gross Settlement” in Section IV(2) on Page 4 of the class notice should be amended to state “Deductions from Gross Settlement Subject to Approval by the Court.”</li> </ul> <p>Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements.</p> <p>Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.</p> |
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